STUDENTS' UNION GOVERNMENT

FEDERAL UNIVERSITY OF TECHNOLOGY
P.M.B 1526 OWERRI IMO STATE

Obi
Onyinyechi Favour.

THE CONSTITUTION OF THE STUDENTS' UNION GOVERNMENT

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ARTICLE 1: CITATON

The constitution shall be known as, and called the constitution of students union, Federal University of Technology, Owerri, herein :after referred to as "The constitutions".

ARTICLE 2 : FUNDAMENTALS, AIMS AND OBJECTIVES.

1 To respect the constitution of the Federal Republic of Nigeria and the rule of law and all constituted authority of the Federal University of Technology Owerri.
2 To work towards the achievement of the aims and objectives of the Federal University of Technology Owerri.
3 To evolve an effective and responsible students union.
4 To promote the good name of the Federal University of Technology ,Owerri
5 To encourage a harmonious student –staff university of Technology, Owerri.
6 To maintain and protect the constitution and the image of the members.
7 To create a veritable forum for culture, social intellectual, physical and moral development of the members.
8 To maintain and encourage cordial and fruitful relationship amongst all her members irrespective of country, State of origin, sex, religion and, or political belief.
9 To condemn and oppose all types of injustices, oppression and victimization through constitutional means.

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10 To seek solutions to the problems of the handicapped and the destitute.

11 To co-operate with similar students' organization(s) within and outside Nigeria.

12 To eschew violence at all times and under all condition.

13 To extol and employ dialogue as a means of solving problems within the Union and between the University Administration

14 To ensure the non-existence of secrete cults and other illegal organizations on the campus.

15 To ensure and maintain a conducive learning Environment through all these laws enacted.

ARTICLE 3: GENERAL PROVISIONS

1 This Constitution is supreme and its provisions shall have binding force in all bodies, authorities and person(s) under the Students' Union.

2 If any other law or decision of any body, authority of person within the ambit of the Students' Union is inconsistent with the provision of the Constitution, the Constitution shall prevail and such other Law(s) and/or decisions(s) shall to the extent of its/their inconsistency be null and void.

ARTICLE 4: MEMBERSHIP RIGHTS AND PRIVILEGES

1. Members:

All matriculated students of the Federal University of Technology, Owerri shall be eligible for membership, on payment of the registration fee, and shall have immunity over unlawful harassment and molestation.

2. Right:

Members shall have the right to:

a Use the official colours and emblems of the union.

b Become member(s) of recognized and affiliated societies of the Union.

c Have the right to fair hearing

d Vote and be voted for in approved election (s) of the union as provided for Article 13 of the Constitution.

3. Privileges

3.1 Members shall have the privilege to:

Use the facilities and equipment of the Union as may be approved by the union.

a Participate in all meetings and functions organized or recognized by the union.

3.2 Person(s) placed under a parliamentary probations shall not have the right withing the period of probation) to vote or be voted for or speak at any meeting organized by/under the Union or any part thereof.

3.3 Upon the death of member, honorary member, such a member shall be entitled to:

a Publication of His/Her obituary within the University.

b Delegation of at least twenty-five (25) students, one from each department of the University to witness the funeral.

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c Where Article 4 section 3.3 (b) above is impossible such delegation shall pay a condolence visit to the family of the decreased

d The delegation shall support the family of the deceased financially or otherwise through the Students" Union Government as maybe determined by the Executive Council.

4. Honorary Member:

a Shall be appointed by the Executive Council and ratified by the Students' Representative Council (SRC) as Considered fit by reason of interest of the individual students academic endeavours and Other Contributions to the Federal University of Technology, Owerri and/or to the Society in general

b Shall have the privilege s to;

i. Use the facilities and equipment of the Union

ii. Use the official colours and emblems of the Union.

iii. Participate in all functions organized or recognized by the Students' Union.

c Shall have no voting rights

d Shall not be more than 4 in the life span of any Union Government.

5. Affiliated Members:

a Students Pursuing sub degree program of the Federal University of Technology, Owerri may become affiliated members of the union provided that the students pay the necessary registration fee.

b Affiliated membership shall

i. Use the official colours and emblems of the union

ii Become members of the recognized and affiliated Societies of the Union.

iii Only vote and be voted for in Students' Representative Council elections as provided for in Article 12.3 and 13.10 of this constitution

6. Life Members

a. Life membership of the Union may be conferred on any ex-member who has made outstanding contributions to the Union, the University or the Nation.

b Life membership shall be conferred only on the authority of the Students' Representative Council. On a recommendation of the Students' Union Executive Council: or

ii A resolution of 2/3 of members present and voting at a properly constituted session of the Students' Representative Council.

c. Life members shall have the privilege to be member of recognized clubs and societies of the Students union.

7. Grand patron

The vice –chancellor shall be the grand patron of the Students' union.

8. Patron(s).

a There shall be a number of patrons as may be recommended by the Executive Council and ratified by the SRC provided not more than two (2) are appointed or elected in a session.

b A patron shall remain as such except in the following circumstances:

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i. He resigns his post patron
ii. He dies.
iii He becomes insane
iv. Any constituted Law Court of the land Convicts him crime
v. He is removed by motion supported at least constituted meeting of the SRC.

ARTICLE 5: ORGANS OF THE STUDENTS' UNION

For the purpose of effective administration of the Students' Union Government, there shall be

a The Executive Council
b The Students' Representative Council (SRC)
c Judiciary
d The Students Congress

ARTICLE 6: EXECUTIVE COUNCIL, POWERS AND FUNCTIONS

1. Composition

There shall be for the Students' Union Government an Executive Council, which shall comprise the following members:

a The president
b The vice president
c The Secretary General
d The Assistant Secretary General
e The Finance Secretary
f The Treasurer
g Public Relations Officer
h Director of Welfare

i Director of Transport
j Director of Socials
k Director of sports

2. Powers and Function

a. The Executive Council shall be the working committee of the Union and shall carry out the day to day running of the Union in conformity with other sections of this constitution
b. The Executive Council shall be accountable to the entire members of the Union through, the SRC and the Congress.
c Subject to the approval of the SRC, the Executive Council shall seek all concessions, grants and authorization from within or outside the University and enter into such contracts, agreements and carry out such duties as may be necessary, for, or in the business of the union with the approval of the Vice-Chancellor or acting through the, Dean of Students' Affairs.
d. The Executive council shall employ the staff of the union subject to the approval of the Dean of Students Affairs.
e They shall present a financial report of the Unions account to the SRC through the Finance Secretary, at least twice each semester.
f. They shall present a budget through the finance Secretary to the SRC for approval a Commencement of their tenure.

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g They shall present an annual audited Union's account to the SRC through the Finance Secretary at the end of their tenure.

h. The Executive Council shall be responsible for the implementation and maintenance of the Constitution and other laws made by the SRC.

i A person or group of persons elected into the Executive Council shall not begin to perform the function(s), of the office until they have taken subscribed to the OATH OF ALLEGIANCE and the OATH OF OFFICE as provider by this Constitution.

3. Duties of Officers

A) The President

a. President shall

i Be the first member and the head of the Union

ii Be the Chairman of the Executive Council of the Union.

iii Be the Chief Spokesman of the Union in all Internal/External representation.

iv Acting through or with the Secretary General summon meetings of the Executive Council of the Students' union.

v Preside at all meetings of the Executive Council and Congress

vi Be a signatory to the Students' union Account together with the Finance Secretary and the Treasurer.

vii Supervise all aspects of the Union's activities

viii Endorse any bill(s) passed by the Students' Representative Council Into Law(s).

ix Co-ordinate the activities of the National students body of any other external student body in so far as they affect the Students' Union.

x Countersign press release(s) or policy

xi Lead or has power to appoint a leader for all delegations of the Union

xii In consultation with the Secretary General and other members of the Executive Council, summon the Congress.

xiii Consider as appropriate, requests from any member of the Executive or a committee/board dully established with the requisite approval of the Students representative Council.

xiv Exercise all other such powers and carry out all other such duties as are herein after allocated to him. Under other articles and sections of this Constitution.

xv Represent the union on Senate and Administrative Committee as appropriate

xvi Be the Grand Commander of Students Security (GCSS) FUTO.

Power of the president as the Grand Commander of Student Security (GCSS)

The president Shall:

xvii Have such powers as to issue instructions and command to the various students' security outfit as at when necessary with respect to the due discharge of their duties.

xviii Over see the activities of the Students Security in FUTO.

xix Be responsible for the duties as any be assigned to, by this constitution as the Grand Commander of Students Security in FUTO

The Students Security shall inform the President (GCSS) of any matter, culprit, offence or detained person(s) before taken any further action.

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xxi No detained student by the student Security shall exceed 24 hours in the detention.

xxii Perform such functions as the legislature may from time to time deem fit to direct.

B The Vice President.

The Vice President shall:

i Assist the President in his/her duties and act for him/her in his/her absence,

ii Co-ordinate the activities of the Students' Union Week Committee

iii In case the Office of the president falls vacant hold the seat pending the conduct of a bye-election,

iv Carry out all such functions as may be herein after assigned o him/her in this constitution or by the President.

C. The Secretary General

The Secretary General shall

i Be responsible for general administrative duties in the Union's Secretariat including supervision of staff

ii Be responsible for all correspondence
Convene all Executive meetings at the instance of the President,

iii Maintain an archive of attendance registers minutes or records of the Executive Council as well as records of all other organs of the Students union Government.

iv In consultation with other members of the Executive Council complies and it to the SRC a full report of all the activities of the Union covering the of his/her tenure.

vi Reply as directed and sign all outgoing correspondence the Union. No correspondence purposed to have been issued by the Students' Union shall be valid unless it bears the signature of the Secretary General.

vii Supervise and direct all the secretarial duties of the Executive Council and supply the Council with adequate Stationery needs for the effective execution of its functions.

viii Delegate any of his/her duties to the Assistant Secretary General as appropriate. In the absence of the Assistant Secretary General such duties i.e. delegated to any other member of the Executive Council subject to the approval of the President.

ix Keep an impress of not more than 1000 naira, which is subject to review by i.e. SRC from time to time

D. The Assistant Secretary General

Assistant Secretary General shall:

i Assist the Secretary general in his/her official duties and perform the functions of that office in the absence of the Secretary General

ii Co-ordinate all educational programmes

iii Organize at least one educational programme in a semester

iv Be responsible for the counting and recording of votes at all meetings of the Executive Council and SRC, and the Congress

v Serve as the Secretary to the Students' union Week Committee.

vi In the event of a vacancy, hold the office of the Secretary General pending a selection

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vii Perform such other function(s) as may be herein after assigned by the Secretary General or any other Article of this Constitution.

E. The Public Relations Officer

The Public Relations Officer shall;

i. Be responsible for information dissemination among the member of the union,

ii In consultation with the presidency and / or Executive Council, carry out the publicity of the union activities,

iii Be the chairman / chairperson of the publications committee which is responsible for the union Magazine and other periodicals.

iv Purchase and display newspapers Magazines and other publications in students' Common Rooms,

v In consultation with the President and Secretary General Print almanacs, emblems and other publicity materials.

vi Account to the finance Secretary for all monies collected within four (4) working days.

vii Maintain the Union's suggestion box(es).

viii Be in charge of all information units of the Union.

ix Carry out any other function(s) as may be hereinafter assigned by other Articles of this Constitution.

F. The Finance Secretary

The Finance Secretary shall:

i Collect all monies, dues, fees, levies, donations or fines due to the Union and pay in such amount to the Treasurer within 48 hours and collect receipt for same.

ii Keep all financial records of the Union.

iii Certify expenses as approved or endorsed by the President and as provided' for in the approved budget

iv Present at least twice each semester a statement of accounts/financial records of the Union to the SRC with the approval of the Executive Council.

v Submit financial records for auditing by the Audit Committee at the end of each semester as so required

vi Be a signatory to all cheques, bills of exchange and all other financial documents of the Union by which the Union's finances are paid into or withdrawn from the Union's bank account

Perform all other function(s) that may be hereinafter assigned by any other Article(s) in this Constitution,

Perform such other functions as the Legislature may from time to time deem fit to direct.

G. The Treasurer

i Put all monies belonging to the Union within 72 hours of receiving them, the Union's bank account.

ii Issue receipts for any money or monies collected by him/her from the Finance secretary.

iii Remit monies for all expenditures endorsed or approved by the president the Union bank account to any person . Body, Committee or Board . Who shall make use of such monies as approved by appropriate authorities.

iv Be a Signatory to the Union account (S) or any other bill of exchange or financial documents by which monies lodged in the Union's account(s) maybe paid to or withdrawn for payment to any person or body,

v Take custody of and maintain all books or accounts or Finances of the Union Government except as stated, elsewhere in the constitution,

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vi Record all withdrawals and expenditures made or incurred by the Union Government with the requtste authority and approval of the president of the Union Government.

vii Keep an impress of not more than 1000 naira. which

H. The Director of Welfare.

The Director of Students' Welfare shall:

i Be the Chairman of the Catering Committee and Students Welfare Committee

ii Be in-charge of the general welfare of the union members

iii See to the welfare of the visitors of the Union,

iv Be responsible for the functioning of the Students' Union Cafeteria,

v Submit a progress report each semester on the welfare catering needs of students to the SRC.

vi Exercise all other functions as may be hereinafter allocated under other Articles of this Constitution,

vii Ensure a clean and neat environment in the school

ix Take charge to ensure the carrying out a monthly sanitation within the school environment.

I. The Director of Transport

The Director of Transport shall:

i Be in-charge of all the Union vehicles and their maintenance in the Estate and works section of the University through the Dean of Students Affairs.

ii Give monthly account to the SRC on the union's commercial transport.

i Ensure that officers of the union comply with the rules and regulations for the use of the Union's vehicles as provided for in Article 18 of this Constitution,

iv Organize a transport system for the benefit of the students, In consultation with the President hire out Union. vehicles accordance with Article 18 of this Constitution,

v Be in charge of the FUTO park and transport activities 3 •

J. The Director of Socials

The Director of Socials shall:

i Be the Chairman of the Social Committee, Which shall be responsible for all social activities of the Union,

ii Be the custodian of all audio-visual equipment belonging to the Union.

iii Grant permission for the use of audio-visual equipment of the Union for activities of affiliated/ recognized University clubs and societies after due application.

iv Maintain a proper inventory of all audio-visual equipment of the Union,

v Direct activities of the Union during the orientation program in consultation with Executive Council and/or students' Affairs Unit.

vi Account for all monies collected or spent through the Finance Secretary to the SRC within two (2) weeks.

vii Organize at least one social function each semester;

K The Director of Sports

The Director of: sports shall:

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i Be the Chairman of the Students' Union Sports committee,
ii Co-ordinate and organize all sporting activities of the Union,
iii Be a signatory to all sporting expenses incurred by the Union.
iv Be a member of the University Sports Committee,
v From time to time present to the SRC program(s) and or report(s) of sporting activities for the current session,
vi Exercise all such other functions as may be hereinafter allocated under other Articles of this constitution.

ARTICLE 7: MEETINGS OF THE EXECUTIVE COUNCIL

i The Executive Council shall meet at least once a month in ordinary session and as often as necessary in extra ordinary/emergency session.
ii At least 2:3 of the members of the Executive Council shall constitute a quorum.
iii The Secretary General shall also convene a meeting of the Executive Council on a request signed by at least 2/3 of members of the council.
iv The council shall determine the manner in which issues before it shall be voted upon.
v In the absence of any of the President or the Vice President, other members present in the meeting shall appoint a Chairman from amongst themselves,
vi Proceedings of the meetings of the Executive Council shall be governed-by Standing Orders approved by the Council. The Standing Orders shall not be in conflict with any Article of this Constitution.

ARTICLE 8: STUDENTS' REPRESENTATIVE COUNCIL (SRC)

Establishment of the SRC

There shall be a Students' Representative Council.

2. Composition:

The SRC shall, consist of only the number of departments and one(l) each from any other approved program.

The members of the SRC shall strictly be' elected ' from the departments and one student from an of the approved program.

3. Designation of Members and Symbol of Authority:

The member(s) shall be known and addressed as Honorable, member(s) of the Student' & representative council (MSRC) Mace bearing crest of the University shall be the symbol authority of the SRC.

4.1 Officers of the SRC

1. Principal Officers:

a. The Principal Officers

The Speaker

The deputy Speaker iii. The chief Whip

b. These Officers who shall be elected members of the SRC shall be elected during the inaugural meeting of the SRC

4.2 Administrative Officers:

a. The Administrative Officers or the SRC shall consist of:

i. The Clerk of the House

ii. The Deputy Clerk of the House

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iii. The Sergent-At-Arms

b. The above Officers who are not members of the SRC shall be elected by members of the SRC.

5. Functions of officers of the SRC:

a. The Speaker shall:

i Have powers to summon meetings of the SRC through the Clerk of the House.

ii Summon a meeting of the SRC through the Clerk of the house on written request of the President of the Union.

iii Summon an emergency meeting of the SRC through the clerk of the House on a written request of at least one third (1/3) of the members of the SRC

iv Preside Over all sessions of the SRC.

v Exercise no Voting right except a casting Vote in the event of a tie

b. The Deputy Speaker:

The Deputy Speaker shall:

i. Assist the Speaker and act for him in his •absence.

c. The Chief Whip

The Chief Whip shall:

i Ensure that notices of meetings are delivered to all SRC members

d. The Clerk of the House

The clerk of the House shall:

i Convene meetings of the. SRC on the directives of the Speaker containing the agenda reached by members of the SRC at least 48(fort-eight) hours before the meeting,

ii Record and keep in good order minutes of the Proceedings of meetings of the SRC.

iii Keep custody of reports of panels and ad-hoc committees of the House

iv Perform all other such functions as may hereinafter assigned Under other Articles of this constitution.

E The Deputy Clerk of the House

The deputy clerk of the house shall:

i Assist the Clerk of the House an act for him in his absence

ii Keep record of attendance of members of SRC at meetings

iii Perform all other such functions as may be here in after assign under other article of this constitution.

f. The Sergeant -At-Arms

The Sergeant -At-Arms shall:

i Maintain law and order in the House

ii Usher the Speaker in and out during SRC meetings,

iii Carry the Mace of the House and keep Custody of same

iv Perform all other functions as may be hereinafter assigned under other' Articles of this Constitution.

6 Powers and functions of the SRC.

The SRC shall:

1 Be the highest law making body of the Union, It shall have powers to mike laws for the peace, order and good government of the Union consistent with he Acts. Statues and regulations of the University or other Laws of the land.

2 Have powers till scrutinize, modify and approve the budget presented by the Executive Council before it becomes valid and operative.

3 Consider, approve or reject the budget submitted by the Executive council within twenty-one days

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4 In a situation where Article 8, section 6, sub-section above is not met have the powers to approve an amount considered appropriate for the work, of' the Executive council, as an interim measure, pending Executive Council, as an interim measure, pending the approval of the budget.

5 Have powers to criticize, scrutinize, ratify amend' or reject the budget proposal(s) of the Executive Council.

6 Have powers to approve the Banker(s) recommended by the Executive.

7 Have powers to suspend or stop payment for any transaction in the name of the Union or, disbursement of funds from the Unions account subject to the provisions of Articles 16 and 17 of this Constitution.

8 Have' powers to appoint any member of the Union ,'or approved employee of the University or an external, expert, subject 'to the approval of the Vice-Chancellor through the Dean of Students' affairs to serve the Union in an advisory, supervisory or administrative capacity with such powers, as SRC may consider necessary at the time.

9 In the absence, of both the Speaker and his Deputy, the members of SRC shall elect a Chairman for the meeting.

10 Have powers to summon any member(s) of the Executive Council for clarification and by a two-third (2/3) majority of the members present and voting at a sitting 'of the House, may proceed to warn, suspend or dismiss such member(s) where found guilty in accordance with, Article 8 section 7.

Have Powers to pass bill(s) into "Law by a two-third (2/3)

22 majority of members present and voting at a sitting if the President falls to sign the bill(s) Into law within 21 (twenty one) days after the President had been notified by SRC

12 Have Powers to setup to Ad-hoc standing Committee(s) as may be necessary for the running of the House by a two-third (2/3) majority of members present and voting at a Session of the SRC

13 In the event of a situation not provided for in this Constitution occurring, have Powers to make and enact laws to take care of such a situation provided such an event is in the interest of the Union and shall be Consistent with Act, Statues and Regulation of the University.

7. Impeachment Procedure

a. The Executive Council

i The holders of such office(s) whose conduct is being investigated under this section shall stand suspended from office pending the outcome of the investigation and shall have the right to defend themselves in person before the House.

ii A motion of impeachment shall be raised against any member(s) of the executive Council.

iii The SRC shall proceed to investigate the charges if accepted by one-third (1/3) of the members of the SRC present and voting at the setting up of an investigation committee,

iv The Investigation Committee shall submit its findings through the Speaker within 7 (seven) days. V. The SRC shall proceed to warn, Suspend or remove any two or all the officers by a resolution supported by at least two thirds (2/3) majority of members present and voting at the sitting The speaker shall summon a meeting within 48 (forty eight) hours of recording the motion for impeachment and Within 24 (twenty four) hours of receiving the report of the' investigation Committee

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b. The legislative Council:

Neither the speaker nor the deputy Speaker shall be removed from office unless in the following circumstances

If a motion for removal is signed by at least two thirds (2/3) majority of members of the SRC and submitted to the Clerk of the House calling for such removal, ii. If the Presiding Officer is involved, the clerk of the House shall have the power in the circumstance(s) to convene an emergency session of the Council as the case may be and the Deputy Speaker shall preside at this sitting.

If the SRC passes a motion by at least two-third majority of members present and voting at a properly constituted sitting, such officer shall stand removed,

When the SRC calls for the removal of the Speaker, the Deputy-speaker shall preside over the Sitting that considers the motion. But where the council calls for the removal of the Deputy speaker, the speaker shall preside over the sitting that- considers the motion, v. In the absence of these officers or where the Council calls for removal of both, the Council' shall elect a person from its membership to preside over the consideration of such motion.

8. Sittings of the SRC

a. Inaugural Session:

The inaugural sitting of the SRC shall be summoned by the, president elect and be held not later than 72 (seventy two hours after the swearing-in of the President,

ii Officers of the SRC' shall be elected at the inaugural sitting,

iii The Chief Electoral Officer shalicondL1ct the election of Officer of the SRC. it shall be secret ballot

b. Ordinary Session:

I The -Speaker $hall, in accordance with the provision 'of this Constitution, summon 'ordinary meetings of the SRC.

ii The Mace shall be presented and placed Conspicuously before the Speaker or any person acting in that capacity , at an SRC sessions:

iii Voting shall be by show of hands unless otherwise decided by the SRC.

iv One-third (1/3) of the members of the' SRC shall constitute a quorum at ordinary _ sessions,

v Except otherwise stated in this Constitution, every question .or proposal shall be decided 'by simple majority of the vote of the member of SRC present at the Sitting. In the event of a tie, the speaker shall have a casting vote

vi Subject to the provisions of this Constitution the SRC shall have powers to regulate its: own procedure including the procedure for recess of the House

c. Emergency sessions.

i The procedure for summoning emergency Sittings of the SRC -by speaker shall be as provided in Article 8 section -5 subsection a (iii) , and must be acted Within 12 (twelve) hours..

ii The Speaker will summon an emergency meeting of the SRC through the Clerk of the House on the written request of the president

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iii If the Speaker fails to summon the emergency meeting as required 'by the Constitution the Deputy Speaker shall summon it and if the deputy Speaker fails to summon the emergency meeting then the Clerk of the House shall do so.

iv Notice of an emergency meeting of the SRC shall be conspicuously displayed in all halls of residence/Students' Union buildings notice boards and SRC notice boards at least five (5) hours before the time of the meeting and such notice shall contain the age of such sitting.

v Procedure for emergency session shall be the same as for ordinary sessions

vi Quorum for emergency Sitting shall be Constituted by one third (1/3) of members of the SRC

9. Standing Orders:

Guideline on standing orders for the Legislature and Executive Arms of the Union Government and Committees and Boards thereof:

i Type of meetings/sitting (Normal and Emergency)
ii Venue
iii Notices of meetings/sitting and service of notices
iv Agenda
v Summoning of meetings/sitting
vi Emergency meetings/ sittings
vii Quorum. Presiding Officer
viii Voting
ix Voting by presiding officers Resolution
x Minutes of meetings/Sittings and form Motions and counter-motions

xi Seconding motions and counter-motions Amendment of motions and counter-motions.
xii Acceptance or rejection of amendment of motions
xiii And counter-motion by mover.
xiv Point of Order and proceedings at meetings/Sittings
xv Point of information and proceeding at meetings/sittings
xvi Motions and type
xvii Debates at meetings/sittings and order
xviii. Dressing at meetings/sitting and discipline
xix Decorum at meetings/Sittings' and order
xx Adjournment
xxi Time for meetings/sitting
xxii Absentees and effects
xxiii Frequency of meetings/sittings
xxiv. Suspension,
xxv Probation
xxvi Investigation of allegations of misconduct,
xxvii Publications of decisions or resolutions
xxviii Copying our decision's to certain persons, bodies or authorities
xxix Miscellaneous matters
xxx Functions of Officers
xxxi Interpretations

ARTICLE 9: THE: JUDICIARY 1. There shall be for the' Union a Judiciary a. Establishment

i There shall be a court of first instance to be known and called

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"Students' High court", whose members shall be referred to as judges. It shall be constituted within the four (4) weeks of the inauguration of the SRC

ii The students' High Court shall have five members, selected by the FUTO Bar. Association, ratified by the SRC thereafter appointed by the Executive council

ii Composition of the court shall be exclusive to Union members who are neither in the Executive nor in the SRC but are member of the FUTO Bar Association, and such members shalt be honest, fearless and of unquestionable character and must have spent not less than one academic session in the Union

iv There shall be for the judiciary of the union Government a chief judge to be appointed by the Executive; also the judges shall appoint a registrar and a clerk of Court from outside the members

v Three members including the chief judge shall constitute a quorum.

vi The Court shall be set up by an incoming Executive and shall be ratified by the SRC and shall remain in force until a succeeding Executive dissolves it and new members appointed.

vii Swearing in of a new SUG Executive by the Chief Judge shall mark the end of his duties.

b. Functions:

The functions of the Students" High Court shall be;

☒ Exercising the judicial Powers conferred on it by the provisions of this Constitution to entertain all forms of litigation.

a Brought to it by any Union member(s)

b Between a Student or group of Students and Club/Association; or between a club/Association and another Club/Association.

c Such other persons as cafeteria operators and any other(s) having business ventures operating under the Union from time to -time,

2. Exercising original and appellate jurisdiction over matters relating to the following:

a Elections and petitions relating thereto.

b Interpretation of any provision of this constitution.

c Code of conduct, interpretation thereof and the breach of the code by any person or body or persons

d Interpretation of Acts, Laws or Rules; orders or regulations made there under by the Legislation

e Whether any of the provisions of Constitution of the Federal republic of Nigeria relating to the fundamental Rights-of the Citizen: or any other provisions of the Constitution to Which the provisions of the Constitution subject has been, is being or is likely to be contravened or breached by any person or body or organ of the Union in relation to any person

f The Constitutionality or otherwise of any action taken by the Executive Councilor any member thereof or any agency or the Executive Councilor any committee or Board established by the Executive or any member of the Legislatures.

g Such other matters as may be prescribed by an act, law or bylaw, rule order or regulation made there under by the legislature from time to time, the High Court shall have jurisdiction over the members of the Executive or the Speaker or the SRC when acting in their official capacities.

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i All such cases .shall be tried and judgment delivered within 21days

2. The judicial Council

Composition of the Judicial Council

* The Judges of the students' Court
* Justices of the Court of Appeal
* The President of the FUTO Bar Association (FBA)
* The secretary of FBA
* Two other members nominated by the FBA who are members of the FBA and ratified by the SRC.
* The Deputy Registrar.

b. Officers of the Judicial Council

i. The Chairman

ii The Registrar

iii. The Deputy Registrar

c. Functions of the Judicial council

The Judicial Council shall decide on matters concerning the members of the judiciary arid take actions when the need arises.

d. Functions of the Judicial Council

i. The Chairman

He shall:

Be the head of the Judicial Council

c. Perform' any other function prescribed in this Constitution

ii. The registrar shall:

a. Serve as Secretary to the Judicial Council

b. Summon Judicial Council meetings in Consultation with the Chairman

c.Act as Registrar to the membership of the Judicial Council

d. Keep a Register of the membership of the Judicial Council

e. Be the Custodian of the Registers, minute books and other document and 'properties of the judicial council

f. Be the administrative officer- of the courts

g. Perform any other function(s) as prescribed in this Constitution or may be directed by-the Chairman.

iii. The Deputy Registrar shall:

a. Deputize for the Registrar in his absence

b. Assist the Registrar in the performance of his duties

c.Perform other functions as may be directed by the Registrar or the Chairman.

3. Judgment of the court of appeal

a The Ruling of the Court shall be binding on the litigants unless reversed by the Court of Appeal.

b The Ruling .of the Court will be communicated to the people involved and Copies sent to:

i. The Dean of Students' Affairs

ii. The Executive the SRC Council or the Union_ through the Secretary General

iii. The Students' Court-of Appeal

iv. The University Security Unit/Paramilitary' Organization,

All notice boards

c.The Dean' of -Students'" Affairs shall enforce the Rulings of the Court.

d. Parties to a suit shall be at liberty to engage counsels provided such 'must be current Students of the University, with Over one

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e. Counsel(s) shall register with the Judiciary on the payment of a fee to be determined by the Judicial Council

4. The Court of Appeal a. Composition:

The students' Court of Appeal shall be composed of:

i. Five, students who are members of and are recommended by the FUTO Bar Association to be appointed by the Executive Council and ratified by the SRC

ii. The legal adviser to the Students Union as The President

iii. The Dean of Students Affairs or his/her representative,

iv. The Registrar who must be a Student Lawyer,

v . The Deputy Registrar.

b. Sitting:

The Chief Judge and any other' three members shall constitute a quorum,

c. Functions:

The Student Court of Appeal shall have powers to handle:

i. All Constitutional matters referred to it by the Union or 'any member(s) thereof,

ii.All cases of Appeal after ruling by the High Court,

5. Judgment of the Court of Appeal:

The ruling of the Students" Court of Appeal shall be final and shall be communicated to the Union as in Act 9:3(b)

6. Removal of a Judge

a. A Judge of toe Judicial Council shall be removed by a two-third (2/3) majority or nearest whole number thereof of the legislature "sitting at a

joint session for the purpose of this section and acting on the written petition of a member of the judicial council signed by a simple majority of the Council, for inability to discharge the functions of his office or for gross misconduct as may be determined by the judicial Council.

d. But the SRC cannot summon any judge as a result of these official duties (judgment delivered).

ARTICLE 10: THE HALL/EMBASSY GOVERNMENT

1. Establishment:

There shall be an established Hall/Embassy Government for each of the Students' Hostels and any other residential area/embassy recognized by the SRC from time to time.

2. Membership

The Members of the Hall Government shall consist of. FUTO students who are registered occupants of the particular Hall for that particular academic session, while that of the embassy shall be for known students of that embassy.

3. Composition

i. Each Hall Government shall consist of:

- The Hall Governor, The Hall Secretary
- The Hall Welfare Officer
- The Hall Treasurer
- The Hall Spoils Officer — Sports
- The Hall Socials Officer

ii Each embassy shall consist of

a. The Ambassador

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b. The Deputy Ambassador

4. Powers and Functions of the Executive Council of the Hall I embassy Government

- Each Hall embassy Government shall care for residents' needs and welfare, and shall ensure the active involvement of students of their Hall/embassy in the activities of the Students' Union.
- The Hall/embassy Government shall be accountable to the Union and the SRC through its individual Hall Governor and ambassadors who shall present a report of its activities.
- The Hall/embassy government shall be and remain part of the SUG.
- The Hall I embassy government shall report the matters requiring the attention of the SUG through' the director of Welfare who shall transmit same to the appropriate quarters within 48hours.
- On no account should officers of the Hall/embassy Government hold any meeting with the Dean of Students Affairs in the absence of the Union President or his representative.
- The Hall Government shall also report sensitive issues to the Hall Warden who shall be appointed by the Vice Chancellor and the .director of Welfare should be communicated within 24 hours before the report is forwarded to the Hall Master,
- The Hall Government shall certify daily, the job(s) of the cleaner(s) employed in the Hostel, Ensuring that they work with the necessary materials,

- All the Welfare officers of the different halls of residence shall constitute the welfare committee of the SUG with the Director of Welfare as the Chairman.
- They shall supervise the business centers, reading room. SUG and University properties within their Hall(s) of Residence,
- They shall carry out such other function(s) as may be hereinafter assigned by other Article(s) of this Constitution.

5. Functions of the Officers of the a. Hall Governor:

The Hall Governor shall

- Head the Hall Government
- Acting through or with the secretary summon all meetings of the Hall Government,
- Preside at all meetings- of the Hall Government
- Supervise and. coordinate all activities of the Hall,
- Be a signatory to all financial dealings of the Hail Government.

b. Hall secretary:

The Hall Secretary shall;

- Convene 'all meetings at the request of the Governor
- Keep attendance register/record or minutes of meetings
- Keep in Consultation with the Hall Porter a list of names of legal occupants of that Hall,
- Keep all the financial records of the Government
- Be a signatory to _ all the financial dealings of the Hall Government

c. Hall Welfare officer

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The Hall welfare

- See to overall welfare of the occupants of the Hall,
- Carry 'out periodic inspection and ensure good sanitary environment as well as living conditions of inhabitants of the Hall.
- Carry out such other functions(s) as may be Hereinafter as signed by other Articles of this Constitution.

d. Hall Treasurer

The Hall Treasurer shall:

- Be in custody of all the Hall Government monies,
- Be signatory to the financial account of the Hall Government.
- Keep record of all monies coming into and jar going out of the Hall Government's account,
- Tender a financial report of the Hall Government periodically

e. Sport Officer

The Hall Sport Officer shall

- Co-ordinates all sporting activities of the Hall,
- Be in custody of all the Hall sporting materials and equipment.

f. Haft Socials Officer

The Hall Social Officer shall

- Organize and coordinate all social activities of the Hall
- Organize.an annual .Hall week for each Hostel. Functions of the embassy government

G Ambassador

The ambassador shall

- Head the embassy Government
- Summon all meetings of the embassy Government,
- Preside at all meetings of the embassy Government

- Supervise and coordinate all activities of the embassy
- Carry out all these duties as may be hereinafter assigned to by the SRC.

H. Deputy Ambassador.

The deputy ambassador shall

- Deputize in the absence of the ambassador
- Carry out activities as may be assigned to by the ambassador.

6. Tenure

The tenure of the Hall/embassy Government shall be same as that of the SUG.

6. Meetings

- The Hall/embassy Government shall meet with members of the Hall/embassy at least once a semester
- A quorum shell be formed by 2/3 of the Executive members during Executive meetings and 1/3 of the members to the nearest whole number during general meetings.

8. Voting

- For the Hall Government Decision of the Hall government shall be determined by simple majority of members present and voting.
- For the Embassy Government

Decision of the embassy government shall be determined by simple majority of the lodge presidents

9. Elections

Shall be in accordance with the provisions made in other, Article(s) of this Constitution.

10. Students' Half Council

a. Establishment

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There shall be established a Students' Hall Council

b. Composition:

- The SUG President
- The Secretary General of the Union',
- All other executive members of the Union
- Members of the Executive council of each of the Hall Governments.

c. Functions:

The Hall Council shall:

Meet at least once per semester to formulate polices that will enhance better living conditions.

ARTICLE 11: THE STUDENTS CONGRESS

1. 'Establishment

There shall be a Students' congress of the Union.

2. Composition

Membership of the Students' congress shall be open to all Members of the Union.

3. Meetings

- The Congress shall be the supreme organ of the Union.
- The students Congress shall meet at least once a semester,
- The President of the Union shall be the Chairman of the Congress.
- The President of the Union shall through the Secretary General of the Union summon and preside over all meetings of the congress and in his overall, meetings of the Congress in his absence, the Vice President of the Union,
- On a written request signed by at least one third (1/3) of the members of the SRC through Speaker to the President and published in all notices boards, the President shall be compelled to summon the Congress within twenty-four (24) hours of receiving such a notice. Any member of the Union upon a written request signed by at least two hundred (200) students with names, registration numbers and departments and published on all notices boards shall compel the President to summon a Congress within twenty-four (24) hours of-receiving such.
- The, meetings for the Students Congress shall be a forum for the President of the Union to brief members of the Union on the programs and activities, of the Union Government Questions and comments shall be entertained during the meetings.

ARTICLE 12: ELECTORAL COMMISSION

There shall be for the Union an ad-hoc electoral Commission to be called the Independent Student Electoral Commission (ISEC)

i. Functions:

The ISEC shall be, responsible for

a. Drawing up the bylaws and guidelines for the Unions' Elections.

b. Registration of voters

c. The direction conduct and supervision of the election for the Union.

d. Counting of votes announcement and publication of the results of the elections

2. The execution of functions by the Electoral Commission as provided for in section 1 (a) - (d) of this Article shall be in strict compliance with the provisions or the Constitution.

3. Composition

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⊠ The Electoral Commission shall comprise of only elected final year students as members.
⊠ They shall be elected one each representing the existing schools and one shall be appointed by the Dean of Students affairs in a case to make the committee an odd number.
⊠ The Chairman shall be appointed by the Vice-Chancellor from the members of the Commission.
⊠ The Dean, Students Affairs of the University or his representatives shall be an observer all through the election process.

4. Neutrality

⊠ The Electoral Commission as the name implies shall be independent and neutral
⊠ An Electoral Officer shall not contest for or hold any concomitant office in the students' Union.

ARTICLE 13: ELECTIONS Procedures:

⊠ Elections shall be conducted at the beginning of the second semester of each session/academic year and in any case not later than six weeks after resumption during the second semester
⊠ The Electoral Commission shall draw up regulations subject to the provisions of this Constitution. Such regulations shall be published at least two weeks before the date of the electrons
⊠ Candidates shall be matriculated regular students of this University who have spent at least one full academic year in the University such candidates shall be of good academic standing and shall neither be on disciplinary probation nor of questionable character.
⊠ Elections shall be by secrete ballot.
⊠ A member of the Union body shall have only one vote for any particular office.

⊠ At the end of the' polling, the Chairman or any member of the Electoral commission as maybe delegated, shall open the ballot boxes and count the votes in the presence of the candidates and/or one of each of the candidates representatives.
⊠ The Chairman shall announce the-results of the Elections as soon as the counting completed and the details published within twenty-four (24) hours of completing the counting.
⊠ The winner in any election shall be the candidate with the highest number of votes. In the event of a tie, the Electoral Commission shall arrange for a run-off election within seven days
⊠ All petitions on the electoral malpractice shall be directed to the Electoral Court which shall beset up by the Judicial Council. Any candidate or party dissatisfied with the decision of the Electoral Court can appeal to the Court of Appeal and its decision. Judgment shall be final. All petitions shall be instituted within forty-eight hours after release of the results and shall be disposed off within seven (7) days after the election
⊠ The SRC members shall elect its own representative
⊠ Each constituency shall elect its own representative:
⊠ Each outgoing officer of' the Executive Council/SRC shall be required to make a written handover of all documents/property in their possession to their successor not' later than two (2) weeks after the swearing-in-ceremony.
⊠ The swearing-in-ceremony as above shall take place three (3) weeks before the' lecture free week as may be determined by the University academic calendar

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ARTICLE 14: QUALIFICATION FOR STANDING ELECTIONS

⊠ Every member of the Union who wishes to stand for election in the Union must possess a minimum CGPA of: 3.00 for the post of President and 2.50 for the other posts. All aspirants under the FUTO SUG shall obtain an affidavit from the students High court FUTO to assure peace keeping and good conduct.

ARTICLE. 15: TENURES OF OFFICES

1. Executive Council:

⊠ Members of the Executive Council shall hold office for one academic year from the time of their election.

⊠ Members of the Executive Council shall be deemed to have deserted their offices if the President declares that they have been absent from three consecutive meetings of the Council and if it is so confirmed by the Executive Council. In the event of resignation, removal from office or death, a bye- election shall be conducted within twenty-eight (28) days of such resignation, removal or death to fill the vacant office.

ARTICLE 16-STUDENTS1 UNION FINANCES

1. Bank account

The Union shall have Bank Account with any bank as may be determined by the Executive Council and ratified by the SRC.

2. Assets

- The Assets of the Union shall include:

a.Membership dues:

Membership dues of eight hundred naira (800) per member and Three Thousand Naira (3000.00) for each fresher as SUG fees.

b. Donations:

Subject to the approval of the SRC, the Union shall undertake fund raising activities, when and where necessary and shall receive aids, grants and gifts from individuals and organizations, provided that such assistance does not in any way prejudice the Articles of this Constitution or undermine the policy and the objectives of the Union,

c. Profits

All profits due to or accruing from sponsored activities as well as service provided by the Union shall form part of the Unions finances.

3. Liabilities

⊠ Furnishing, and maintenance of the Union buildings and vehicles

⊠ Salaries of Union employees.

⊠ Stipends for Executive officers of the Union.

⊠ Allowances for members of the Judiciary Council.

⊠ Ordinary sitting allowances for members of the SRC.

⊠ Expenses in respect of approved activities of Union

⊠ Where the office concerned in 15,1 c. above has no Vice or, Deputy, the Executive Council shall delegate any member to cover the functions of the office till a new officer is Sworn-in.

⊠ In the event of resignation, the President shall submit SUG letter of resignation to the SRC through the Speaker for acceptance or rejection.

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☒ If 15.1 c. occurs within two (2) months to handover, the Executive. 4 Council shall, appoint somebody to fill the vacant office subject to ratification by the SRC.

2. Students' Representative Council

☒ Members of the SRC shall be elected for one academic year, unless they resign or are removed in accordance with the provisions of this Constitution.

☒ A member of the SRC shall be deemed to have forfeited his seat in the House if the Speaker declares that he absented himself from .three consecutive ordinary sittings of the SRC without permission from the Speaker in consultation with the clerk of the House,

☒ In the event of a resignation, removal from .the office or death of an SRC member, there shall be a bye election in his constituency within two weeks. If the member affected is the Speaker or Deputy Speaker, members of the SRC shall elect a new Speaker or Deputy Speaker.

☒ In the event of a resignation, an SRC member shall submit his letter of resignation through the Clerk to the SRC. The Speaker shall submit his own letter of resignation through the Deputy Speaker.

☒ The Speaker or Deputy Speaker shall stand removed from office as Speaker or Deputy Speaker of the SRC tentatively if a motion for his removal is passed by a two third (2/3) majority of a properly constituted SRC sitting

☒ Capital expenditure in respect of utilities provided by the Union,

☒ Free school hostel accommodation for every official of the Union,

☒ Grants-in-aid made to affiliate clubs and societies,

4. Disbursement of Union Funds

a.Union funds shall only be disbursed on the authorization of all three of the following signatories:

☒ The Union president

☒ Treasurer

☒ Finance Secretary

b. The appropriate officers shall sign all vouchers for purchase before payment is made

c. Any official who is guilty of any improper expenditure shall be punished to the extent that such improper expenditure and the liability thereto shall be, refunded in full.

5. Grants

a. Receipts

The Union receipts duly signed and stamped by the Finance Secretary shall be issued in acknowledgment of the funds received by the Union.

b. Disbursement

☒ Requisition for grants for the Student& Union annual funds shall be made on an application form for funds obtainable from the Finance Secretary

☒ The completed forms shall be returned to the Finance Secretary for presentation to the Executive Council.

6. Audit:

a. The accounts of the Union shall be audited once every semester

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by auditors as may be appointed by the SRC. The auditors may include external auditor(s) as may be deemed fit by the SRC, The Chairman of the respective, audit committees shall present the Auditors report(s) and statement(s) of accounts to the SRC. The audited report(s) shall thereafter be published by the Financial Secretary and displayed in, all Hall and no later than fourteen (14) days after consideration by the SRC

ARTICLE 17-BUDGET /BUDGET PROCEDURES

There shall be an annual budget of the Union

1. Budget

☒ The Executive Council of the Union shall through the Finance secretary present an annual budget to the SRC

☒ A copy of the approved budget shall be presented to the Dean students' Affairs for his information. Once approved by the SRC, no amendment shall be made except on the recommendations of the Executive Council.

☒ The finance Secretary's statement of account shall be,

☒ The recurrent and capital-appropriation of the Union shall be made up 'to annual dues "surplus transferred from the previous budget, (if any) and other revenues that may be generated by the Union.

☒ The Union shall establish a sinking fund. At least five percent (5%) of the Union funds shall go into the sinking fund account in a bank approved by the SRC for this purpose.

2. Budget Procedures:

☒ The, Executive Council shall present the' annual budget through the Finance Secretary to the SRC

☒ The SRC shall consider the budget of the executive Council in strict compliance with the following procedure.

☒ The Speaker shall receive the budget after the President Address' on the Budget presentation from the Finance Secretary.

☒ The SRC shall refer the budget to the budget committee which shall within one week make all necessary amendment and recommendations to the SRC

☒ The Committee shall thereafter invite for interview each official of the union government who proposed a budget for clarifications during sitting(s) on the budget,

☒ The SRC may invite the Finance Secretary for any further information it may require.

☒ The Speaker shall summon within two weeks, 3 sittings of the SRC at which the chairman of budget Committee shall present the report of the Committed to the SRC for consideration and decision.

ARTICLE 18. STUDENTS' UNION. VEHICLE(S) MOVEMENTIUSAGE

☒ The Director of Transport shall keep the Students' Vehicle(s) movement form/logbook form/movement book shall contain the following data.

☒ The identity of the user

☒ Date(s)

☒ Time of collection and return of the vehicle

☒ Purpose of use

☒ Odometer reading after use

☒ The condition of the vehicle before and after usage and the destination of the user.

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3. In addition to the Director of Transport, the following shall be signatories to the Vehicles movement:
The President or in his absence, the Vice President In the absence of the officers above, any other person(s) acting in their capacities shall sign
4. In the absence of the Director of Transport the President and the Secretary General shall jointly approve the use of the unions' vehicle both signatures shall be mandatory
All application for the use of the vehicle shall be directed to the President through the Director of Transport.
6. The logbook and movement form shall: be properly filled before and after use of the vehicle(s) on every occasion
7. A token fee to be fixed by the Executive Council to be paid by the association; club, society or individual student(s) of the University wishing to use the vehicle(s) for any journey not lasting more than ten (TO) hours. Any extra time spent shall be paid in .percentage hours spent that is if: X hours = Extra no of hours spent % of hour spent = x/10*100-10x%
If Y-Token paid
Extra amount to be paid = 10X% of Y
Called FUTSU formula. That the parties concerned shall fuel the vehicle(s) while the Union shall bear the overtime bill of the Union driver as may be determined by the SRC.
8. The Union vehicle(s) shall be parked at the end of each day in the Central security office of the University.
9. It shall be an offence for the driver to move the vehicle for any unauthorized journey of any form.

10 On no account shall anybody drive the Union vehicle(s) other than authorized person(s)
11. Any Union member contravening the provision of Article 18, section 10 shall be liable to punishment. However, in extraordinary Circumstances, any student who is licensed to drive may be authorized to assist.
It shalt be an offence for anybody to tamper with any pail of the, vehicles without authorization of the Director of Transport (See Article 6, Section 3)

ARTICLE 19: AFFILIATED CLUBS AND: ASSOCIATIONS / SOCIETIES

Any club/society association within the University and registered with the Student Affairs (SAU) and having as its primary objectives the development of the intellectual social and/or cultural aspect of the students' Union.

ARTICLES 20': STANDING COMMITTEES

The speaker of the SRC shall constitute a standing committee if a need for such arises when necessary.

1. Publications Committee

a. Composition: The Publication Committees shall comprise

1 A Chairman who-shall be the Public relations Office

ii. Ten (10) members including at least one (1) person from each Hall of Residence

2. Sports Committee

a. Composition

I. A Chairman who should be the Director of Sports of the Students Union,

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ii. Ten members including at least one (1) person from each Hall of Residence.

b. Functions

i. Be the governing body for all sporting activities of the Union

ii. Have powers to suspend or otherwise discipline sportsmen/Women who violate rules and regulations

iii. Determine petition(s) and/or report(s) of match official's and team on the result and/or conduct of competition(s) or match(es) and their decision(s) shall be final.

3. Social Committee

a.Composition

The Social Committee shall comprise

i. A Chairman who shaft be the Director or Socials of the Students' Union

ii.Ten other members including at least two fertile members

b. Functions

i. Be responsible for promotion of social activities of the Union

ii.Ensure that all clubs/societies and associations of the University are registered with the Union and comply with the provision of the constitution

4. Welfare Committee

a.Composition

The Welfare committee shall comprise all welfare officers of the different Halls of Resident with the Director of Welfare as the chairman

b. Function:

i. Be responsible for the running of the Students Cafeteria

Ensure adequate welfare services for the students

iii. Receive complaints and make recommendations to the Dean of student Affairs.

v.The campus and cooperate with the University.

Transport Committee:

a. Composition:

The Transport Committee shall comprise

i. The Director of Transport as Chairman.

ii. Ten members selected from the Union including at least one person from each Hall of Residence.

b. Functions

i. It shall be responsible for organizing transportation system for students on a commercial basis

ii. Treat complaints between students and public transport (bus drivers)

iii. Enforce the maintenance of transport fare to and from the University at a reasonable price

6. Budget Committee

a. Composition.

The Budget Committee of the Students Union shall comprise

i. The President as its Chairman

ii. The Finance Secretary as the Secretary

iii. One member of the Executive Council

iv. Representation of the University Bursar in attendance,

b. Functions.

It shall:

i. Prepare the annual/supplementary budget of the Students' Union

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ii. Meet regularly to monitor the performance of the budget and recommend necessary adjustments to the SRC

7. Audit Committee:

There shall be established an Audit Committee

Composition:

The Audit Committee shall' consist of not more than five (5) members according to the provisions of Article 16. section 6

ARTICLE 21-AD-HOC COMMITTEES

1. Union Week Committee 1

a Composition:

The Union Week Committee Shall comprise

i. The Vice President as its Chairman

ii. Assistant Secretary General as it's Secretary

iii. Nine (9) other members' selected from the Union members by the Executive Council

b. Function

It shall:

Plan and organize the Union Week in accordance with the provisions of this Constitution

2. Constitution Amendment Committee

This Committee shall be setup when the need arises.

3. Other Ad-hoc Committees.

The Union may set up other Ad-hoc Committees as the need arises.

ARTICLE 22- DISCIPLINE

1. Discipline shall be strictly enforced within the students Union and any member found guilty of any offence 'shall be liable to punishment as provided for in this Constitution

2. *Offences*

Offences shall include:

a.Routing the Constitution of the Students Union

b. Acting in a manner that is likely to bring the name of the Students Union and/or that of the University to ridicule disrepute and/or contempt.

c.Fraudulent or dishonest act which may embarrass or disgrace the Students Union,

d. Defrauding the Union and/or any of its official agent

e. Giving out official information of the Students Union without the authority of the Students' Union

f. Rebellious publications and subversive article as determined by the Judiciary.

3. The form of punishment seriousness of the offence as for instance suspension from office, removal from office, debar-ring from holding, office fine refund, censure and caution as may be determined by the judiciary. All cases of misconduct shall be reported to the bean of Students Affairs.

4. It shall be an offence for any person holding any office in the Executive -Council to hold a concomitant position in any club or association society affiliated to the Union Of' in any other organization

ARTICLE 23- POWER OF RECALL

1. The Executive Council:

a. Any member of the Executive Council shall be recalled if

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members are dissatisfied with his performance.

b. Executive Council members shall be considered recalled from the Executive Council if in a properly constituted Students Congress at least two-thirds (2/3) to the nearest whole number present and voting decide to recall them.

c. The 'outcome of Article 231 section II sub section b above shall be copied to the appropriate quarters.

d. A copy of-the document shall be made available to the two courts by the Executive Council and the High Court shall cause the Executive Council to publish the recall order within seven (7) days of its submission.

e. From the time of publication, the affected member shall be deemed recalled

2. The SRC

a. Members of the SRC shall be deeded recalled from the House If those they represent deed it necessary-to for any reason whatsoever.

b. A document signed by at least two-thirds (2/3) of constituents, submitted, to the SRC through the Speaker- or the Clerk of the Housel shall render a Representative recalled.

c. The SRC shall make copies of the recall notice available to both courts and the Executive Council.

d. The High Court shall cause the Executive Council to publish the recall notice to the Executive Council.

e. The member shall be deemed withdrawn from the date of the publication.

3. Any member(s) recalled:

a. Shall not contest for any election within the Union for two semesters thereafter.

b. Shall surrender all Union property in his/their possession within fourteen (14) days.

e. Shall vacate his/their official residence (if any) within the same time interval.

f. May appeal to the High court within fourteen (14)

4 The Electoral Committee shall conduct bye-elections for any post(s) declared vacant through recall within twenty eight days.

ARTICLE 24- GENERAL

1. Duration of office

Subject to the provision of this Constitution.' an elected officer shall hold office until

a. His/her successor in that office has been duly sworn In:

b. The date his/her resignation from office takes effect.

c. He/she ceases to hold office in accordance with the provisions of this Constitution

2. Resignation from Office: Any officer of the Union can resign his/her office as indicated below:

A. In the case of the President or any member of the Executive Council, the notice of resignation in Writing shall be addressed the Speaker of the House through the clerk of the House for the purpose of considering the notice,

b. The notice of resignation shall be accepted by a simple majority of members of the House,

i. In case of the Speaker/Deputy Speaker, the notice of resignation in writing shall be addressed to the House

ii. A meeting of the House shall be summoned by the office who will preside at the meeting. The officer shall cease to hold his

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office if the of resignation is accepted by a simple majority of the House In case of the Clerk or other staff of the House, the notice of resignation shall be addressed to the Speaker or the House .

d. In the case of a member of a standing Committee of the House, the notice of resignation shall be addressed to the House.

e.In the case of Chairman or other member(s) of an ad-hoe committee or either the House or Union Executive, the notice or resignation shall be addressed to the appointing authority.

f. The resignation of any officer referred to in c and e above shall take effect when the notice in writing signifying the resignation is received and duly acknowledged by the Person to whom it is addressed.

g. On the resignation of 'any member of the House, the Speaker shall forthwith give "notice .of .the resignation to the members of the House.

h. Any office who resigns his/he membership shall hand over all property of the Union in his/her possession within 48hours to the appropriate officer who shall hand it over to the Speaker of the house or the Union President as the case may be.

3. Removal from office

a. An officer of the Union may be removed from office in accordance with the provisions of this section

b. A person holding any office the Students Union shall be removed from office. Whenever a notice of alleged misconduct against such an officer signed by not less than one third (1/3) of the members of the house is presented to the Speaker.

Whenever a notice states that the holder of the office is guilty of gross misconduct; detailed particulars of which shall be specified.

c. The speaker shall within seven days of the receipt of the notice cause a copy thereof to be served on the holder of the office and on each member of the House and shall cause any statement made by the accused in reply to the allegations to be served on each member of the house.

d. Within fourteen days of the presentation of the notice (whether or not any statement was made by the holder of the office in reply to the allegation contained in the notice) the House shall resolve by motion without any debate whether or not the allegation shall be investigated.

g. A motion of the house that he allegation be investigated shall not be declared as having 'passed unless it is supported-by the votes of not less than two-thirds (2/3) majority of all members of the SRC Present and voting.

h. Within 24hrs, the house shall appoint seven (7) members to investigate the allegation

i. The holder of an office whose conduct is being investigated under this section shall be suspended from office end shall have the right to defend himself/herself in person.

4. Powers of Panels

a. A panel appointed under this section shall:

Have such powers to exercise its functions as may be prescribed by the SRC

ii. Within twenty One (21) days of its appointment/report its findings to the House.

ARTICLE 26- DEFINITIONS

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1. "Union" means the Students' Union of The Federal University of Technology, Owerri
2. 'SRC (Students' Representative Council) means the legislative organ of the Union also known as the House.
3. 'High Court' means court of first instance.
4. 'Executive Council' means the executive arm of the Union.
5. 'Executive(s) means executive council members of the Union.
6. Officers of the 'Students' Union' means 'any member of the Students' Union serving in any capacity.
7. Law means a law provisions rules/regulation and/or policy made by SRC and/or law or the land.
8. Election means all elections and bye-election in accordance with the provisions of the Constitution
9. Electoral Commission means a body appointee to conduct all elections and bye-election for the session.
10. Half means Students' Hail of Residence as may be established by the University.
11. Constituency' means any Department or approved program for the purpose of representation at the SRC
12. Off-campus students(s)1 means, those who are not officially accommodated within the University premises/hostels.
13. 'Parliament' means the SRC in session.
14. Member(s) means matriculated student(s) of this University.
15. Affiliated member means student(s) pursuing

approved sub degree programs within the main campus of the Federal University of Technology, Owerri,
16. 'His' means as the case may be He or She and/ or He and/or She
17. University Authorities shall, include the Governing Council, Senate and/or any other person(s) acting on their behalf.
18. 'Two-thirds majority' means a number approximated to the nearest whole number as simple majority is one-third.
19. Residents' mean occupants of any residential area.
20. Tenure of office; means one academic session.
21. 'Properly constituted SRC sitting1 means a sitting of the SRC as provided for in this Constitution under the ordinary sitting of the SRC.
22. Secret ballot used in this Constitution means voting, as against the show hands, standing behind or before contestants or their picture and: posters, or any other such format which requires show of voter(s).
23. FBA means FUTO Bar Association. An association of practicing barristers at FUTO judiciary.
24. Students security are security outfits of FUTO students only, such as Man O war, students military, ICP and any other recognized students security.
25. Unlawful harassment means any form of torture, ill-treatment, compulsory labour except in a case of being convicted and or a judgment is being passed by FUTO High court or the school management.

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26. GCSS Means Grand Commander of Students' Security,

ARTICLE 27-AMENDMENTS TO THIS CONSTITUTION

The SRC shall have power to amend or review this Constitution us and when necessary as follows:

1. A motion for amendment(s) shall be moved with the amendments precisely stated.
2. The Speaker through the Clerk of the House shall cause such proposed amendment(s) to be published of; the Union Notice Board(s) if accepted' by 'at least one third (1)3) of the SRC members present in the sitting.
3. The SRC shall in subsequent sitting (s) deliberate on reject, modify and/or adopt the amendment by at least 'two-thirds (2/3) majority of members present in a properly constituted House.
4. The amendment shall be sent to the president, SUG for endorsement to the Senate, The amendments) shall thereafter be published on the Union's Notice Board(s).

ARTICLE 2S: SCHEDULES

1. First Schedule

Format for notice of alleged misconduct

We, the undersigned, being members of the Students Representative Council, do hereby give notice of an alleged misconduct against

Name of Officer and Post

Particulars of alleged misconduct

Particulars of the petitioner

S/N	Name of Student	Reg. No	School / Dept	Signature and date

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1 Second Schedule

Oaths of Office A

A "Union President

I,..... do solemnly swear that will be faithful and bear true allegiance to the Students' Union, Federal University of Technology, Owerri. Nigeria: that I. will discharge my duties to the best of my capability, faithfully and in accordance with the Constitution of the Students' Union, federal University of Technology, Owerri and the law and always in the interest of the integrity and solidarity, well being and prosperity of the Federal University of Technology, Owerri: that I will strive to preserve the fundamental aims and objectives contained in the Constitution of the Student. Union, Federal University of Technology Owerri: that I will not allow my personal interest to influence my official conduct or my official decisions; that in all circumstance, I will do right to all manner of student according to law without fear or favour, affect or-will; that 1 will not directly or indirectly communicate or reveal to any person any matter which shall be brought under my consideration or shall become known to me

As.....

President of the Students Union, .Federal University of Technology, Owerri except as may be required for the due discharge of my Duties as President; and that I will devote myself to the service and well being of the Students of Federal University of Technology, Owerri, Imo State, Nigeria.

So help me God

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